

| By Shafi Rahman |

Soon after the tsunami had killed thousands of people along the coasts of southern India, Parliament passed the Disaster Management Bill that provided for setting up an institutional mechanism to coordinate and respond promptly to disasters, natural or man-made. "Its passage was timely, coming as it did after a year in which floods, earthquakes, heavy snowfall and avalanches created havoc in parts of our country," Prime Minister Manmohan Singh said, patting his own Government in the back as the bill was passed unanimously in the House and went on to receive presidential assent in June 2005. When the Government

The UPA Government is touching a low road in betraying the trust of Parliament and of its own reformist postures. During the notification stage, many ministries have put on hold significant parts of the acts passed by Parliament and assented to by the President, thus allowing the executive to stray into the domain of the legislature. Various ministries have already run their knife through over half-a-dozen crucial acts, ranging from the ones regulating petroleum and natural gas to those that curb powers of arrest in criminal cases. The governments have over the years been quick when it comes to notifying the acts that are given assent by the President. The saccharine qualities of many legislations passed by the Parliament often

long overdue. The bill received presidential assent on August 23, 2006. But it wasn't until nearly three years later, in July 2009, that the Ministry of Health and Family Welfare issued the notifications needed to implement the Act. The Act is still waiting, however, to be turned into deed as the ministry quietly set aside those parts that were concerned with the use of food additives, processing and banning the use of insecticides during the long-drawn notification process. As a result, the Food Safety Authority is a toothless tiger and the food Indians consume continues to be unsafe as processed food companies vie for their share of your stomach.

Activists argue that the Government caved in to the pressure from

ACTS OF OMISSION

By announcing partial enactment of bills passed by Parliament, the Government is not only betraying the faith of the two Houses but playing into the hands of vested interests

finally enforced the Act, crucial sections—23 and 24—which called for setting up of the National Disaster Management and Response Funds for financing rescue and rehabilitation, didn't find their way into the dreary pages of the Gazette of India, virtually nulling the legislation as the omissions had denied necessary funds to manage disaster situations.

The Disaster Management Fund was not set up as the Government lost its enthusiasm down the line to put money into the project and vetoed it away from the gaze of the Parliament.

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This is now beginning to threaten the food on our table. When the Government introduced the Food and Safety Standards Act in 2006, it impressed Parliament with plans for "laying down science-based standards for articles to ensure availability of safe and wholesome food for human consumption". For a country where 60 per cent of food commodities are contaminated with pesticides, of which almost 14 per cent showed contamination over the maximum tolerance limits, the legislation were

influential players in India's \$100-billion (Rs 4,50,000 crore) food market, about a third of which is processed foods that wanted to stop the crucial reforms. "We needed a regulator that erred on the side of public health, to ensure the food on our tables met strict standards for toxins, additives and chemicals and enabled nutrition, not commerce, to drive the food industry," says Sunita Narain of the Centre for Science and Environment.

Bills passed by Parliament become law when they receive presidential